SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 4984 of 2020 (YEAR: 2021)

CORAM: U.U. LALIT, VINEET SARAN

Jeetendra Kumar
... Appellant(s) / Petitioner(s)
Versus
State of Rajasthan
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 14, Article 16

JUDICIAL HEADNOTE & SUMMARY

Reiterated that compassionate appointment is an exception to open recruitment aimed solely at relieving immediate financial distress, not an inheritable right.

RATIO DECIDENDI

The Court held that: Reiterated that compassionate appointment is an exception to open recruitment aimed solely at relieving immediate financial distress, not an inheritable right. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Jeetendra Kumar v. State of Rajasthan (Civil Appeal No. 4984 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 14, Article 16. Reiterated that compassionate appointment is an exception to open recruitment aimed solely at relieving immediate financial distress, not an inheritable right.

OPERATIVE ORDER

ORDER: Decided